

25STCV25385 25STCV25385

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-09-02

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The demurrer of Defendant Kye McGee ("to the cause of action for sexual harassment based on a hostile work environment in Plaintiff's First Amended Complaint ("the FAC") is overruled. The allegations in the FAC are sufficient to state that claim against McGee.

The demurrer of Defendants Target Corporation and Osokwe Vasquez cause of action for sexual harassment based on a hostile work environment in the FAC is sustained in part and overruled in part. Target is liable for the actions of McGee, which as indicated above, is sufficiently alleged in the FAC. The allegations against Vasquez also are sufficient to state a sexual harassment claim against him. However, the allegations in the FAC are insufficient to impose liability on Target for Vasquez's actions. Thus, to that extent, the demurrer is sustained with leave to amend.

The motion to strike of Target and Vasquez is granted. The motion to strike is directed at the fifth cause of action in the FAC, which is for constructive discharge, and the allegations supporting it. The motion also is directed at allegations in the FAC of retaliation by Target against Plaintiff and a resulting mental health breakdown that Plaintiff suffered that led her to attempt suicide. All of this was added to the FAC without leave from the Court when the Court on February 19, 2026 ordered the Plaintiff to file the FAC coupled with a motion to proceed under a pseudonym, which the Court subsequently denied on August 13, 2026. The Court's February 19, 2026 order was very limited. The material that is the subject of the motion to strike exceeds the scope of that order. If Plaintiff wishes to assert a constructive discharge claim and make allegations of retaliation and the resulting harms to Plaintiff, then Plaintiff must file a motion for leave to amend to accomplish that.